# Alabama Rules of Criminal Procedure

## Rule 11. Incompetency and mental examinations.

*Rule 11.4. Examination at defense's expense.*

The defendant's lawyer may have the defendant examined by an independent expert at any time at the expense of the defense. Any institution in which the defendant is confined shall make the defendant available to the independent expert for examination upon receipt of a court order or written notice from defense counsel.

[Amended 10-1-96.]

### Committee Comments to Rule 11.4 as Amended Effective October 1, 1996

Rule 11.4 is similar to Rule 467(6), Unif.R.Crim.P., and is patterned after ABA Standards for Criminal Justice, Criminal Justice Mental Health Standards 74.11(e)(ii) (2d ed. 1986).

This provision was included to ensure that the results of all possible examinations are made available to the trial judge for preliminary review under Rule 11.6(a).